

SUBSTITUTE FOR
HOUSE BILL NO. 5717

A bill to amend 1954 PA 116, entitled
"Michigan election law,"
by amending section 373 (MCL 168.373).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 373. If ~~neither~~ the township clerk, ~~nor~~ any deputy
2 township clerk, ~~shall be~~ **and any other election-accredited employee**
3 **of the township are not** available to perform any necessary
4 functions in connection with registrations, nominations, or
5 elections during the usual or required times for performing ~~such~~
6 **those** functions, the township board **of that township** shall appoint
7 some qualified ~~person~~ **individual** who is a registered elector of the
8 township **to perform those functions until the township clerk or**
9 **deputy township clerk resumes those duties. If the township board**



1 is unable to appoint a qualified individual who is a registered
2 elector of the township to perform those functions, the township
3 board shall appoint an individual who is accredited to conduct
4 elections, in accordance with section 33, and who is a resident of
5 an adjacent township to perform ~~such those~~ functions until ~~such~~
6 ~~time as the township clerk or a deputy resume their township clerk~~
7 ~~resumes those~~ duties, or until a new township clerk is appointed or
8 elected and that new township clerk, or the clerk's deputy township
9 clerk, is accredited to conduct elections. ~~Any such person so~~
10 ~~appointed shall have~~ A township board shall not appoint a county
11 clerk to perform the functions of a township clerk under this
12 section. The appointed individual has all of the powers and
13 authority of a deputy township clerk appointed by the township
14 clerk pertaining to registrations, nominations, and elections. The
15 appointed individual shall provide a report to the township board
16 at each regularly scheduled township board meeting that occurs
17 while the individual is performing the functions and duties that
18 summarizes the functions and duties performed by the appointed
19 individual.